

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: May 23, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

MEMORANDUM ORDER REQUIRING CORRECTED OPPOSITION

On May 23, 2024, at the request of the parties, I convened a status conference to address confusion regarding Respondent SM Line Corporation's recent filings. On May 15, 2024, Respondent SM Line Corporation filed an opposition brief, proposed findings of fact, and response to Complainant Samsung Electronics America, Inc.'s ("SEA") proposed findings of fact, along with a motion for confidential treatment. SM Line's proposed findings of fact did not include citations to an appendix. The next day, SM Line provided a link to download its appendix. On May 20, 2024, SM Line filed updated confidential versions of its proposed findings of fact and response to SEA's proposed findings of fact, along with errata sheets for each, and public versions of its filings. The following day, SM Line provided a link to download the public and confidential versions of its appendix. The updated confidential appendix included material not included in the original confidential appendix and was not organized in accordance with the instructions in the June 2, 2023 Scheduling Order.

SEA sought to strike the additional material and requested additional time to respond. After conferring with the parties at the status conference, and consistent with the June 2, 2023 Scheduling Order and the need to ensure a clear record for decision, I made the following rulings.

ORDERED:

1. By **May 28, 2024**, SM Line must file a corrected brief, appendix, proposed findings of fact ("PFF"), and response to SEA's PFF.
2. The corrected appendix may not include any documents that were not part of the appendix included in the download link made available to the Commission in counsel's May 16, 2024 email.
3. The corrected appendix must conform to the June 2, 2023 Scheduling Order. Specifically, it must consist of a single PDF document if practicable, with

sequentially numbered pages. The appendix must also be accompanied by a table of contents.

4. The corrected PFF must include citations to the corrected appendix. SM Line's citations are not constrained by the "TBD" citations in the original PFF, but the corrected PFF may not include any additional argument, analysis, or textual material (other than corrected or supplemental citations) beyond what was contained in the May 15, 2024 PFF.
5. Any corrected or supplemental citations in the corrected brief or corrected response to SEA's PFF must also refer to the corrected appendix, and may not include additional argument, analysis, or textual material (other than corrected or supplemental citations) beyond what was contained in the May 15, 2024 documents.
6. SM Line's corrected PFF and corrected response to SEA's PFF must be provided by email to judges@fmc.gov in Word format.
7. SEA must file its reply brief by **June 17, 2024**.

To the extent these corrections necessitate changes to the public versions of the documents, SM Line must file corrected public versions in accordance with the Commission's rules. I will accept SM Line's previously filed motion for confidential treatment as a motion to treat the corrected documents as confidential – SM Line must also ensure its confidential filings are clearly marked in accordance with the April 21, 2023 Initial Order.

**ALEX
CHINTELLA**
Alex M. Chintella
Administrative Law Judge

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